



**THE TRIAL COURT OF MASSACHUSETTS
EXECUTIVE OFFICE OF THE TRIAL COURT**

John Adams Courthouse
One Pemberton Square, 1M
Boston, MA 02108

Heidi E. Brieger
Chief Justice of the Trial Court

Thomas G. Ambrosino
Court Administrator

VIA EMAIL

November 15, 2024

Lindsey Vickers
New England First Amendment Coalition
lindsey.vickers7@gmail.com

Re: *Request for Information*

Dear Ms. Vickers:

This letter is in response to your November 6, 2024, request made to the Clerk-Magistrate of the Fall River District Court for information concerning search warrant retention and storage. The Trial Court and all its departmental courts maintain court files in accordance with the applicable Massachusetts statutes and court rules, including Supreme Judicial Court Rule 1:11, which pertains to the disposal of court papers and records.

Rule 1:11 does not specifically address search warrants, and because no retention period is provided under the Rule, in most instances, search warrants have been permanently retained. While the Trial Court is currently considering a retention period for search warrants, we do not have a timeframe as to when such a policy may be finalized or implemented.

Search warrants are paper records only at this time.

Please note that this response applies to all Massachusetts state trial courts and is intended on behalf of all other Clerk-Magistrates and Clerks of Court to whom the New England First Amendment Coalition sent a similar request.

Sincerely,

Thomas G. Ambrosino
Court Administrator